

INTERNAL OPERATING PROCEDURES

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INTERNAL OPERATING PROCEDURES

INTRODUCTION

These are procedures for the court's internal operations. They are intended to supplement the *Guide to Judiciary Policies and Procedures* and the local rules. They set out the procedures generally to be used by chambers and the clerk's office in performing certain administrative tasks. While the procedures are public and available on request, litigants acquire no rights under them. The Court's web page, www.ilnd.uscourts.gov, provides procedures used in the chambers of each of the judges. A current copy of these procedures and any proposed changes is also available at that site.

IOP 01. MEETINGS OF DISTRICT JUDGES

(a) Meetings of the District Judges. The judges of this Court shall establish the policies of the Court, determine its programs, and adopt and promulgate its rules at their official meetings. The regular active and senior judges shall assemble not less than once a month for such official meetings except as they determine otherwise. Each judge attending the meeting, whether active or senior, shall be entitled to vote on matters brought before the meeting, except as otherwise required by statute.

(b) Secretary of the Court. At the September meeting the least senior regular active judge who has not previously served as secretary shall be designated as secretary of the Court. The secretary shall make and maintain the official minutes of the judges' meetings. The secretary, if unable to attend the meeting, shall make arrangements for another judge to act as secretary and inform the chief judge of such arrangements.

IOP 02. EXECUTIVE COMMITTEE

(a) Duties & Responsibilities. This Court shall administer and conduct its business by action of its Executive Committee. The Executive Committee shall prescribe its own rules of procedure. The members of the Executive Committee shall meet not less than once a month, except as they otherwise determine. The chief judge may call the members of the Committee to attend a special meeting where a ruling of the Committee is required, and such ruling cannot be delayed until the next scheduled regular meeting.

(b) Composition of the Executive Committee. The Executive Committee shall be composed of the chief judge, the next district court judge eligible to be chief judge, four regular active judges of the Court, the chief magistrate judge, and the clerk of the Court. The chief judge or, in the absence of the chief judge, the next district court judge eligible to be chief judge, shall preside over the meetings of the Executive Committee. The clerk shall serve as secretary to the Executive Committee.

Membership in the Executive Committee shall be rotated among the regular active judges of the Court in order of seniority. Except as otherwise provided by this section, the term of each regular active judge other than one holding non-voting membership shall start on the day following the last day of service of the prior judge, and end four years later. As the term of such a member of

the Executive Committee expires or terminates for any reason, the regular active judge with the most seniority who has not served on the Executive Committee shall become a member. When all the regular active judges of the Court have served one term, membership shall be rotated on the basis of seniority of the active judges then members of this Court, provided that the chief judge may not serve as both a four-year term member and ex officio. When a judge assumes an unexpired term vacated by another judge, that judge shall serve for four years starting on the day following the last day of service of the judge who failed to complete a four-year term.

(c) Voting Rights of Executive Committee Members. Each member of the Executive Committee, other than the non-voting members, shall have one vote. The chief judge and the clerk of the Court shall be the only non-voting members of the Executive Committee. Therefore, voting members shall be the next district court judge eligible to be chief judge, four regular active judges of the Court, and the chief magistrate judge. In the event of a split vote, the chief judge, or in the absence of the chief judge, the next district court judge eligible to be chief judge, shall cast the deciding vote. In the absence of the chief judge, the next district court judge eligible to be chief judge shall refrain from voting in the initial vote but shall reserve his or her vote in case of a split vote among the other voting members. Each vote shall require a quorum of four voting members.

Amended 10/26/2005, 11/06/2019, 11/22/2022

IOP 03. LIAISON JUDGES AND COMMITTEES

The administrative business of the Court will be accomplished through liaison judges and such committees as the Court, or the chief judge shall create. The chief judge shall make the assignments of liaison judges and members of committees created by the chief judge. The judges so assigned shall serve until such time as the chief judge designates a successor. Members of committees created by the Court shall be appointed and served in the manner provided for in the general order creating such committee.

Each liaison judge and committee shall be responsible for maintaining effective liaison with the departments or agencies or areas of special concern that constitute the administrative area to which the judge or committee was assigned. From time to time each liaison judge or committee shall report to the Court on the activities of the administrative area concerned and make any recommendations for actions on the part of the Court that the liaison judge or committee deems necessary.

From time to time the chief judge after consulting the full Court will cause to be published an order listing the administrative areas to which liaison judges or committees are to be assigned together with any committees of the Court other than the Executive Committee. Such order will also indicate the names of the judges designated as liaison judges or as members of a committee.

IOP 04. CHIEF MAGISTRATE JUDGE

The chief judge shall appoint from among the full-time magistrate judges a chief magistrate judge. The chief magistrate judge shall preside at any meeting of the magistrate judges, shall serve as a voting member of the Executive Committee, shall be responsible for maintaining liaison on matters pertaining to magistrate judges with the district judge designated as liaison judge to magistrate judges, and shall be responsible for performing such other duties as the chief judge directs. The order of appointment will fix the length of the appointment, which shall not exceed four years, with the term ending on December 31.

Amended 10/26/2005, 03/10/2020, 11/22/2022

IOP 05. MEETINGS OF MAGISTRATE JUDGES

The chief magistrate judge shall call meetings of the magistrate judges not less often than quarterly for the purpose of discussing matters of common interest to the magistrate judges in the performance of their duties.

Amended 11/22/2022

IOP 06. DESIGNATED ACTING CHIEF JUDGE

The judges of this Court hereby prescribe that if the chief judge is temporarily unable to perform the chief judge's duties, these duties shall be performed by the judge identified in [28 U.S.C. §136\(e\)](#), unless the chief judge has designated another judge in active service, who consents to the designation, is present in the district, and is able and qualified to serve, as the designated acting chief judge. The designated acting chief judge shall assume all duties and responsibilities of the chief judge during the designated time period.

Adopted 04/30/2008

IOP 07. MAGISTRATE JUDGE EXTENDED SERVICE RECALL

(a) An eligible magistrate judge who wishes to be recalled to office as provided for by [28 U.S.C. §636\(h\)](#) shall make such a request in writing to the Chief Judge of the Court. The request shall specify the judicial workload the magistrate judge wishes to carry while in recall status.

(b) Where the Chief Judge receives such a request, it shall be forwarded to the full Court for consideration. In such instances, the Court shall consider the needs of the Court and the current judicial capacity of the applicant; and the clerk of court shall provide a report addressing space and facilities considerations affected by the recall, in addition to information concerning magistrate judge utilization.

(c) Where the Court approves a request for the recall of a magistrate judge, the request shall be forwarded to the Circuit Council of the Seventh Circuit in accordance with the Judicial Conference Guidelines.

Adopted 02/25/2010

IOP 08. APPOINTMENT OF PRO BONO ATTORNEYS IN CIVIL CASES

Order of Assignment. Whenever the judge concludes that the assignment of counsel is warranted, the judge shall enter an order pursuant to [28 U.S.C. §1915\(e\)](#) directing the assignment of counsel to represent the *pro se* party. The judge may specify in the order of assignment an area of expertise or preference so that the clerk may select a prospective assignee who indicated such area if one is available. The order shall be transmitted forthwith to the clerk. If service of the summons and complaint has not yet been made, an order directing service by the United States marshal or by other appropriate method of service shall accompany the assignment order. The selection of a member of the trial bar for assignment pursuant to the assignment order will normally be made in accordance with this paragraph. However, the judge may determine that an assignment be made in any of the following manners:

- (1) Where the *pro se* party has one or more other cases pending before this Court in which counsel has been assigned, the judge may determine it to be appropriate that counsel assigned in such other case or cases be assigned to represent the *pro se* party in the case before the judge.
- (2) Where the judge finds that the nature of the case requires specific expertise and among the attorneys on the assignment list available for assignment there are some with the required expertise, the judge may direct the clerk to select counsel from among those included in the group or may designate a specific member of the group.
- (3) Where the judge finds that the nature of the case requires specific expertise and none of the trial bar members available for assignment has indicated that expertise, the judge may assign counsel with the required expertise who is not in the trial bar.

In order to assist the judge in determining whether or not to make a direct assignment under (1) of this section, the clerk shall provide on request the case number, case title, presiding judge, and name of counsel assigned of each case currently pending before the Court in which the *pro se* party has had counsel assigned.

Adopted 06/02/2011; Amended 05/24/2013, 11/24/2014; and 06/27/2024

IOP 09. DUTIES OF THE CLERK IN ATTORNEY DISCIPLINARY PROCEEDINGS

(a) Certification of Conviction in Another Court. Upon being informed that an attorney admitted to practice before this Court has been convicted of any crime, the clerk shall determine whether the clerk of the court in which such conviction occurred has forwarded a certificate of such conviction to this Court. If a certificate has not been forwarded, the clerk of this Court shall promptly obtain a certificate and file it with this Court.

(b) Discipline Imposed in Another Court. Upon being informed that an attorney admitted to practice before this Court has been subjected to discipline by another court, the clerk shall determine whether a certified or exemplified copy of the disciplinary judgment or order has been filed with this Court, and if not, the clerk shall promptly obtain a certified or exemplified copy of the disciplinary judgment or order and file it with this Court.

(c) Conviction or Discipline in this Court. Whenever it appears that any person who is admitted to practice law in any other jurisdiction or before any other court has been convicted of a crime, or disbarred, or suspended, or censured, or disbarred on consent by this Court, the clerk shall, within 14 days of that conviction, disbarment, suspension, censure, or disbarment on consent, transmit to the disciplinary authority in such other jurisdiction, or for such other court:

- (1) a certificate of the conviction or a certified or exemplified copy of the judgment or order of disbarment, suspension, censure, or disbarment on consent, and
- (2) the last known office and residence addresses of the defendant or respondent.

(d) ABA National Discipline Data Bank. The clerk shall promptly notify the National Discipline Data Bank operated by the American Bar Association of any order imposing public discipline upon any attorney admitted to practice before this Court.

(e) Record of Disciplinary Actions. The clerk shall note the entry of an order imposing disciplinary sanctions or reinstating a disciplined attorney on the record of that attorney included in the index of attorneys admitted to the bar of this Court.

Adopted 06/02/2011

IOP 10. CASE NUMBERS AND CASE CATEGORIES

(a) Classes of Cases. All cases filed in this Court shall be assigned to one of the following six classes of cases:

- (1) *adversary proceedings* which include any cases initiated by the filing of an adversary complaint in a bankruptcy proceeding pursuant to the provisions of the Bankruptcy Act or of the Bankruptcy Code;
- (2) *bankruptcy cases* which include any cases initiated by the filing of a petition pursuant to the provisions of the Bankruptcy Code;

(3) *criminal cases* which include any cases initiated (A) by the filing of a complaint, an information or an indictment for the punishment of a crime against the United States, including cases instituted under the Federal Juvenile Delinquency Act, removal cases and complaints for the apprehension of a material witness or (B) by the issuing of a rule to show cause why a person should not be held in contempt where criminal contempt is involved, including such contempts arising from grand jury proceedings;

(4) *disciplinary proceedings* which include any cases involving the discipline of members of the bar of this Court pursuant to [LR 83.25](#), *et seq.*;

(5) *magistrate judge cases* which include (A) any cases initiated before a magistrate judge by documents other than a criminal complaint, including but not limited to search warrants, orders appointing counsel where no complaint has been filed and inspection of warrants, but not generally including petty offenses based on violation notices, and (B) any petty offense proceeding based on the issuance of a violation notice in which the defendant does not waive the right to trial before a district judge and the case is referred to the district court for trial; and

(6) civil cases which include (A) any other case or matters initiated by the filing of an application, complaint, or petition, (B) any appeal from an order entered by a bankruptcy judge, and (C) any certificates for contempt filed by a magistrate judge or by a bankruptcy judge.

(b) Case Numbers. Each case, upon the filing of the initial paper, shall be given a case number which shall indicate the year in which it was filed, the class to which it belongs, and a sequence number, as follows:

(1) the year of filing will be indicated by the use of the last two digits of the calendar year in which the initial paper is filed;

(2) the class to which the case belongs will be indicated by use of the letter A, B, CR, D, M or C, to indicate, respectively, the classes of adversary proceedings, bankruptcy cases, criminal cases, disciplinary proceedings, magistrate judge cases, or civil cases;

(3) the sequence number will be the next available number taken from the appropriate case number series. In each of the two Divisions of the Court there shall be eleven consecutive number series, one for each class of cases other than disciplinary proceedings and one for disciplinary proceedings. The number series in the Eastern Division and the number series for disciplinary proceedings will start each year with the number 1. The number series in the Western Division will start with the number 50,001.

(c) Exceptions to Numbering System in Criminal Cases. An indictment or information that arises out of offenses charged in one or more previously filed criminal complaints shall be designated by the same case number as the earliest filed complaint. Any indictment or

information that supersedes an earlier filed indictment or information as defined by subsection (4) of [LCR 50.2](#) shall be designated by the same case number as that of the superseded indictment or information.

In order to identify clearly and uniquely each defendant named in a criminal complaint, indictment, or information, each defendant listed in the caption of the original complaint, indictment, or information shall be assigned a number such that the first listed defendant shall be defendant 1, the second, defendant 2, etc. Where pursuant to this section an indictment or information is designated by the same case number as either an earlier filed criminal complaint or a superseded indictment or information, each defendant included in the later filed indictment or information who was included in the earlier filed complaint, indictment, or information shall be assigned the same defendant number as was assigned at the earlier filing. Where a defendant included in the earlier filed complaint, indictment, or information is not included in the later filed indictment or information, the number assigned to that defendant will be skipped. Where one or more defendants are included in the later filed indictment or information who were not included in the earlier filed complaint, indictment, or information, defendant numbers shall be assigned starting with the lowest number not assigned at the time of the filing of the initial complaint, indictment, or information.

IOP 11. FILING & ASSIGNMENT OF NEW CASES

(a) Filing Procedures. The assignment clerk shall file each new case in the following manner:

- (1) Except where the case was accepted for filing by the emergency judge outside of regular business hours and the date and time of filing are already noted, the date and time of filing shall be stamped or written on the cover of the documents initiating the case.
- (2) The appropriate case number shall be stamped on the initiating document.
- (3) The case number and assignment category shall be entered into the computerized assignment system and the case shall be assigned.
- (4) A magistrate judge shall be designated for the case in the manner provided for by section (c).
- (5) Except as provided for in section (f) below, the name of the district judge to whom the case is assigned and, where applicable, the name of the designated magistrate judge shall be stamped on the initiating documents.

Where two or more indictments or informations are presented to the assignment clerk for assignment, the order in which they are to be filed and assigned shall be according to their grand jury numbers, the earliest such number being assigned first. Where indictments returned by two or more grand juries are presented for filing at the same time, the indictments of the older grand jury shall be taken first. If two grand juries were impaneled in the same month, the indictments of the special grand jury shall be taken first.

(b) Assignment of Cases: Eastern Division. The clerk shall maintain an automated assignment system for the assignment and reassignment of cases in the Eastern Division. All cases filed in the Eastern Division shall be by assigned using the automated assignment system.

For the purposes of assigning cases to the calendars of the judges serving in the Eastern Division, the civil and criminal cases shall be divided into the categories indicated:

(1) Criminal Cases: (A) Criminal I, (B) Criminal II, (C) Criminal III, (D) Criminal IV, and (E) Criminal V; and

(2) Civil Cases: (A) Civil I, (B) Civil II, (C) Civil III, (D) Civil IV, (E) Civil V, (F) Civil VI, (G) Civil VII, (H) certificates for contempt filed by bankruptcy judges pursuant to Rule 920 of the National Bankruptcy Rules and certificates for contempt filed by magistrate judges.

In addition, those magistrate judge cases involving petty offenses based on the issuance of violation notices wherein defendants did not waive their right to trial before a judge of the district court which are referred to a judge of the district court shall constitute a separate assignment category.

(3) The Executive Committee shall establish the types of cases to be included in Criminal categories I, II, III, IV, and V and in Civil categories I, II, III, IV, V, VI, and VII. A master list of the types of cases included in those categories shall be used by the assignment clerk in the assignment of civil and criminal cases.

The automated assignment system shall provide a separate process for assigning cases in each of the enumerated categories. In each process the name of each judge of this Court, other than the chief judge or any senior judge, shall appear an equal number of times. The sequence of judges' names within each block shall be kept secret. The process shall record for each case assigned the case number, the assignment category, and date and time of the assignment.

(4) A motion for the return of property filed pursuant to [Fed.R.Crim.P. 41\(e\)](#) after an indictment or information has been filed in a criminal case shall be directly assigned to the district judge before whom the criminal case was last pending. If that judge is no longer sitting, the motion shall be assigned by lot to a district judge.

Whenever it appears that a case has been assigned by lot that should have been assigned directly under the provisions of this section, the judge receiving the case shall transfer it to the Executive Committee for reassignment to the calendar of the judge to whom it should have been assigned directly.

(5) The automated assignment system will at the time of the reassignment of any case introduce any equalization required. The equalization will take the form of an adjustment to the appropriate assignment process that will treat the reassignment as a new assignment to the judge receiving the case and negate the assignment of the case to the judge reassigning it. Unless otherwise ordered by the Executive Committee in

the order of reassignment, such equalization will apply in each of the following instances:

- (i) to correct an assignment error where a case that should have been assigned directly pursuant to [LR 40.3](#) was assigned by lot;
- (ii) where a case is reassigned following a result of a recusal with equalization pursuant to IOP 13(f); or
- (iii) where the order of reassignment directs that the reassignment be with equalization.

The clerk shall periodically report to the Executive Committee on the performance of the automated assignment system. Such report shall include a summary of any assignments or reassignments for which equalization is required in addition to any automatic equalization authorized by these procedures. Where it determines additional equalization is required, the Executive Committee will enter an appropriate order.

Records of the system shall be preserved for five years except as otherwise ordered by the Executive Committee.

(c) Designation Cycles for Magistrate Judges. There shall be a separate designation cycle for magistrate judges for civil and criminal cases each of the assignment categories specified in IOP 11(b), provided that the Executive Committee may direct that two or more of the categories other than Civil I, II, and III, and Criminal I, II, and III be combined into a single designation cycle. Each designation cycle shall consist of the name of each of the magistrate judges assigned to the Eastern Division. Whenever a new case is assigned to a district judge using one of the assignment decks enumerated above, the clerk shall randomly designate a magistrate judge from the designation cycle for that type of case as the magistrate judge in the case. Whenever pursuant to [LR 40.3\(b\)](#) or [LCR 50.2](#) a new case is assigned to a district judge directly and not by lot, the magistrate judge designated for the case originally assigned by lot will be designated for the later filed case. The provisions of this section notwithstanding, where an indictment or information arises out of one or more criminal complaints, the designated magistrate judge shall be the magistrate judge to whom the earliest of those complaints was assigned. Where multiple defendants in a single complaint assigned to a magistrate judge are subsequently charged in more than one indictment or information arising out of that complaint, the designated magistrate judge for each such case shall be the magistrate judge to whom the complaint was assigned.

(d) Assignment of Cases: Western Division.

(1) Civil cases in the Western Division shall at filing be both randomly assigned to a district judge and generally referred to a magistrate judge whose duty stations are in that division, provided that a district judge may in any case set aside the initial general reference to a magistrate judge

(2) All criminal cases shall at filing be randomly assigned to a district judge. The United States Attorney must, at the time of filing, advise the Court in writing whether the Federal Bureau of Investigation (“FBI”) took part in the investigation. Based upon the information provided by the United States Attorney, the Clerk of Court will enter a referral of a criminal case involving the FBI only to a magistrate judge who does not have a conflict that would require the magistrate judge’s recusal. For any case not involving the FBI, the Clerk will enter a referral to the magistrate judge who is recused from FBI cases.

(e) Duties under the Federal Debt Collection Procedures Act. Pursuant to [28 U.S.C. §3008](#), the Court assigns its duties in proceedings under Chapter 176 of Title 28 of the United States Code, the [Federal Debt Collection Procedures Act](#), (“FDCPA”) in all civil cases to the United States Magistrate Judges of this Court.

When relief under the FDCPA is sought by the United States, all necessary documents shall be submitted to the designated magistrate. If no magistrate judge has been previously designated, or where the designated magistrate judge is no longer sitting, a magistrate judge shall be designated as provided for by section (c). The designated magistrate shall supervise proceedings, decide all non-dispositive matters, and prepare a report and recommendation in all dispositive matters. If the designated magistrate judge enters a report and recommendation on a dispositive motion, the clerk shall assign the case by lot to a district judge if one has not been previously assigned.

If the parties consent to the reassignment of the proceedings to a magistrate judge, the clerk shall reassign the case to the designated magistrate judge without the entry of a separate Executive Committee reassignment order.

(f) Assignment of Student Loan and Veteran Education Loan Cases. When a complaint is filed on behalf of the Department of Education or the Veterans’ Department alleging a failure to repay a student loan or a failure to repay an educational overpayment, the person filing the complaint shall indicate its nature to the assignment clerk. When a complaint of this type is filed, the assignment clerk shall designate a magistrate judge as provided for by section (c) above and shall assign the case generally to the United States magistrate judges. When necessary, the designated magistrate judge shall supervise pretrial proceedings, which may include the preparation of a report and recommendation for the disposition of any motion for injunctive relief, for judgment on the pleadings, for summary judgment, or to dismiss for any reason.

If the parties consent to the reassignment of the case to a magistrate judge, the clerk shall reassign the case to the designated magistrate judge without the entry of a separate Executive Committee reassignment order. If the magistrate judge enters the pretrial order or issues a report and recommendation on a dispositive motion, the clerk shall assign the case by lot to a district judge.

Where a case requires the involvement of a magistrate judge and no magistrate judge has been previously designated, or where the designated magistrate judge is no longer sitting, a magistrate judge shall be designated as provided for by section (c).

IOP 12. WESTERN DIVISION BACKUP JUDGE

(a) Selection. A judge, whose duty station is the Eastern Division and who is not currently serving as chief judge, shall serve as the Western Division backup judge. The judge shall serve as backup judge for a period of 1 year commencing on the first day of January. Unless an Eastern Division judge volunteers and is so designated by the Chief Judge, the backup judge shall be selected from among the eligible regular active judges on the basis of seniority, the most senior being selected first. No judge who has been in office for fewer than 6 months is eligible to serve as the backup judge.

(b) Reassignment of Cases. When all district judges whose duty station in the Western Division enter recusal orders in the same case, that case will be transferred to the Executive Committee for reassignment to the judge serving as Western Division backup judge. The Executive Committee will reassign the case to the calendar of the judge acting as backup judge as of the date of the Committee's order. The order of reassignment will also provide that the backup judge receive equalization for each case so reassigned in the form of a skip in the assignment of new cases in the same category.

Adopted June 26, 2007; Revised November 21, 2023

IOP 13. REASSIGNMENTS AND TRANSFERS

(a) Multidistrict Litigation. When it is brought to the attention of the Executive Committee that proceedings similar to those in a case pending in this District are pending in one or more other districts and that coordinated or consolidated pretrial discovery proceedings should be conducted, the Committee will notify each judge upon whose calendars such cases appear of the proceedings in the other district or districts. Each such judge will transfer the case or cases to the calendar of the Executive Committee. The Committee will reassign the cases to a judge designated by the Committee for the purpose of hearing and determining any and all motions in connection with such multi-district litigation. The judge to whom the cases are so assigned shall have the power to transfer them for the purpose of discovery to another district, either in this or in another circuit, when it is deemed necessary to promote multi-district discovery, provided that in those instances where the transfer of cases to other districts is being considered by the Panel for Multi-District Litigation, the cases shall not be transferred until such time as the Panel has made its determination.

Cases reassigned under this procedure that require trial following the completion of the consolidated discovery shall be transferred to the Executive Committee for reassignment to the judge from whose calendar they were initially transferred. If that judge is no longer sitting, the cases shall be reassigned by lot.

(b) Fugitive Calendar. The Executive Committee shall maintain a calendar called the Fugitive Calendar. Defendants in criminal cases shall be assigned to that calendar in accordance with the procedures set out in this section. Where appropriate, the term "judge" used in this section shall mean both district judge and magistrate judge.

(1) *Reassignment of cases to the Fugitive Calendar.* Whenever a defendant in a criminal case is fugitive for more than 30 consecutive days or whenever short of said 30 days the judge determines that a defendant is fugitive, the judge to whom the case is assigned shall transfer the defendant to the Fugitive Calendar. Such transfer shall be made even in those instances where other defendants in the case are not fugitive and the case is proceeding as to them, provided that where the judge determines that the presence of the fugitive defendant in such multiple defendant case is required for the trial of the non-fugitive defendants, and an order is entered to that effect, the fugitive defendant shall remain on the calendar of the judge.

(2) *Procedures for removing cases from the Fugitive Calendar.* Where a defendant on the Fugitive Calendar is arrested or appears and the judge to whom the case was assigned is still sitting and hearing criminal cases, the clerk shall promptly transfer the defendant from the Fugitive Calendar to the calendar of that judge. If the judge is either no longer sitting or is no longer receiving assignment of criminal cases, the following procedures shall be followed:

(A) Where the defendant is to be brought before a judge immediately following arrest or appearance, the United States Attorney shall have the defendant brought before the emergency judge who shall order the clerk to notify the Executive Committee of the need to have the defendant reassigned from the Fugitive Calendar.

(B) On being informed of the arrest or appearance of the defendant either as provided in (2)(A) or through other notification, the clerk shall promptly notify the Executive Committee of the need for an order directing the reassignment of the defendant.

(3) *Deferred Prosecution and the Fugitive Calendar.* Whenever subsequent to the filing of an indictment or information the judge approves a deferred prosecution for one or more of the defendants in the case and the case is not to be dismissed until the completion of the period covered by the deferred prosecution, the judge shall transfer the case to the Executive Committee for reassignment to the Fugitive Calendar. Following successful completion of the conditions of deferred prosecution or where the United States Attorney indicates that the conditions have not been met and prosecution should be continued, the judge from whose calendar the case was reassigned shall notify the clerk of the need for an order of the Executive Committee reassigning the case from the Fugitive Calendar to the calendar of that judge.

(4) *Calendar call of the Fugitive Calendar.* The Executive Committee may assign one or more judges for the purpose of making a periodic call of the cases on the Fugitive Calendar. The judge or judges assigned shall from time to time consult with the United States Attorney and the Attorney General to ascertain whether dismissals of particular criminal actions shall be deemed advisable.

(c) Reassignments and Assignments of Cases to the Chief Judge and Senior Judges. From time to time the Executive Committee may assign cases to the chief judge or to any senior judge. Such assignment may be performed in any of the following ways:

(1) The Executive Committee may direct the clerk to assign cases to the chief judge or to a senior judge in the same manner as cases are assigned to a regular active judge but limit the number of categories so assigned.

(2) The Executive Committee may direct the clerk to include the name of the chief judge or a senior judge in the assignment process of one or more assignment categories. In any order directing the assignment of new filings to the chief judge or a senior judge, the Executive Committee shall fix the frequency with which the name of the chief judge or senior judge shall appear in the process for the assignment category specified. The order shall also direct the clerk to assign cases in the assignment categories specified whenever that judge's name appears.

(3) The Executive Committee may, with the consent of the judge to whom such case or cases is assigned, direct that one or more cases be reassigned to the chief judge or to any senior judge.

(4) Where a case is reassigned from a senior judge pursuant to [28 U.S.C. §294\(b\)](#), the case shall be reassigned by lot to a regular active district judge.

(d) Reassignment by Agreement. Where two or more judges agree that the reassignment of one or more cases to one of them will enable the case or cases to be more efficiently administered and will serve to save judicial time, the cases involved may be transferred to the Executive Committee with a request for such reassignment. The request shall indicate briefly the reasons for such reassignment and specify whether or not the judge receiving the case is to return any case or cases to the Committee for reassignment to the transferring judge. If the Committee finds that the reassignment will enable a more efficient administration of the cases, it may then order the reassignment.

(e) Coordinated Pretrials in Complex Cases Not Involving Multi-District Litigation. The Executive Committee may determine that it would be in the best interests of efficient judicial administration to hold a coordinated pretrial proceeding in a group of cases which either (1) are not related within the meaning of [LR 40.4\(a\)](#) or (2) are related within the meaning of [LR 40.4\(a\)](#) but reassignment is not appropriate under [LR 40.4\(b\)](#). Where such a determination is made, the Committee will designate a judge to hold such a proceeding. The cases shall remain on the calendars of the judges to whom they were assigned at the start of the coordinated proceeding and only matters specified in the order of coordination shall be brought before the designated judge. All judges affected by such a coordinated pretrial proceeding shall be notified by the clerk.

(f) Recusals.

General Procedures. Whenever a case is transferred to the Executive Committee for reassignment following a recusal, the Committee shall direct the clerk to reassign the case by lot to a judge other than the judge who entered the recusal. A judge receiving a case on reassignment following a recusal shall promptly determine whether or not to enter a recusal. Where a recusal is entered, the judge shall promptly transfer the case back to the Committee which shall thereupon direct the clerk to reassign the case by lot to a judge other than those previously entering recusals.

(1) *Recusals with Equalization.* When a recusal is entered after a case has been assigned to that judge for less than 90 days, the recusal will be made part of the calendar equalization set out in IOP 11(b).

(2) *Recusals resulting in a transfer of cases.* When a recusal is entered after a case has been assigned to that judge for greater than 90 days, the judge who received the reassigned case may transfer to the Committee for reassignment to the judge entering the initial recusal a case requiring a like amount of judicial effort for disposition. The Committee will reassign that case subject to verification that it will require like judicial effort.

(g) Calendar of Short Civil Trials. The calendar of short civil trials is a program intended to provide a list of cases that are ready for trial and where the trial is expected to take no more than five days. Cases on the list can be handled by visiting judges or by judges of the Court who as a result of unanticipated settlements find that they have available time to try a case.

(1) The following definitions shall apply to section (g):

(A) *Judge:* Any district judge of this Court on whose calendar there are civil cases pending.

(B) *Listing form:* A form approved by the Executive Committee to be used by the assigned judge to effect the addition or removal of a case to or from the short civil trial calendar.

(C) *Ready for trial:* A short civil trial case is ready for trial if (i) the final pretrial order has been entered and (ii) there are no unresolved pending motions other than motions *in limine* reserved for ruling at trial.

(D) *Requesting judge:* A judge who requests a case from the short civil trial calendar or to whom such a case has been transferred but not reassigned.

(E) *Short civil trial case:* A short civil trial case is a civil case that is ready for trial, and it is estimated by the assigned judge at the time of entering the pretrial order that the trial will last no more than five days, including jury selection.

(F) *Short civil trial calendar*: All cases in which a listing form has been received by the clerk that are still pending and available for reassignment to a requesting judge.

(G) *Short civil trial calendar judge*: The chief judge, or a judge designated by the chief judge, will be the short civil trial calendar judge. The short civil trial calendar judge will be responsible for coordinating the trial of cases on the short civil trial calendar.

(2) Any judge may place a short civil trial case on the short civil trial calendar by sending a completed listing form to the clerk. In order to assist the court in determining whether or not placing a case on the short civil trial calendar might be inappropriate, counsel will include in the final pretrial order form information concerning the anticipated circumstances of the trial that might impact scheduling.

(3) On receiving the listing form, the clerk shall forthwith docket the form and notify counsel and parties of the docketing in the manner provided by [Fed.R.Civ.P. 77\(d\)](#) for notice of orders or judgments. The clerk will include with the notice a reminder to parties of their right to consent to a reassignment of the case to the designated magistrate judge pursuant to [28 U.S.C. §636\(c\)](#) and [LR 73.1\(b\)](#).

(4) Any judge, including any senior district judge or visiting judge designated to hold court in this District, who is available to try a short civil case may request such a trial from the short civil trial calendar judge. The short civil trial calendar judge will forward the earliest filed case on the short civil trial calendar that fits the available trial time of the requesting judge. Any case so selected will be transferred to the requesting judge for pretrial review. Such transfer will serve as authority for the requesting judge to act in the case as if the case had been reassigned, although the case will remain on the docket of the assigned judge. The case will be reassigned to the requesting judge for all purposes if it is settled by that judge, or if that judge starts a trial in the case.

(5) If the requesting judge determines that a transferred case is not ready for trial, that judge will so inform the short civil trial calendar judge. The short civil trial calendar judge will so notify the assigned judge and may thereupon remove the case from the short civil trial calendar.

(6) Nothing in this rule shall preclude the assigned judge from settling or trying a case the judge has listed on the short civil trial calendar. If the assigned judge is able to resolve the case, the judge will forward a completed listing form to the clerk. The clerk will notify the short civil trial calendar judge that the case is to be removed from the short civil trial calendar.

(7) Motions brought in cases listed on the short civil trial calendar prior to its transfer to a requesting judge shall be heard by the assigned judge. Motions brought after the transfer but before the reassignment of the case to the requesting judge will be

brought before the requesting judge. The requesting judge may thereupon send the motions to the assigned judge.

(8) When a case is disposed of following a trial conducted by a requesting judge who routinely participates in the assignment of civil cases filed in the Eastern Division, then that judge shall receive equalization in the form of one skip in the assignment deck of the same category as that of the case closed.

(h) Transfer of Motions by Agreement. A judge may with the agreement of the receiving judge transfer one or more pending motions to be ruled upon by the receiving judge without transferring the case. The transferring judge shall notify the Executive Committee of any transfer made under this rule. Such notice will be on a form approved by the Committee.

Notice of any transfer under this rule shall be sent to the parties. The notice shall indicate the name of the receiving judge. Any motion challenging the transfer on grounds other than the recusal of the receiving judge will not be entertained. Any such motion shall be filed with the receiving judge. Any motion for rehearing of a ruling by the receiving judge shall be presented to the receiving judge.

(i) Reassignment of Criminal Cases with Multiple Defendants. Except as provided by the Executive Committee's order reassigning a criminal case with multiple defendants, the reassignment order shall include all defendants.

(j) Other Reassignments and Transfers. If a case is reassigned from a judge who is temporarily not receiving cases pursuant to an order of the Executive Committee, the judge to whom the case is reassigned shall receive equalization in the form of one skip in the assignment deck of the category in which the case was initially assigned. If a case is transferred to the Executive Committee for any reason not otherwise provided for in local rules or the internal operating procedures and the Committee agrees that the case should be reassigned, it shall cause the case to be reassigned by lot. If the name of the transferring judge is drawn, another drawing shall be made. The judge who receives the case may transfer to the Committee a case or cases requiring a like amount of judicial effort to dispose of it or them, with the recommendation that it or they be reassigned to the calendar of the transferring judge.

(k) Order of Reassignment. Where one or more cases are to be reassigned pursuant to [LR 40.4](#), [LR 40.5](#), or sections (a), (b), (c), (d), (f), or (i) of this IOP, the assigned judge shall complete the appropriate reassignment transfer form. If the assigned judge is no longer sitting, the clerk shall complete the form. The transfer form will be given to the clerk who shall promptly transmit it to the chief judge. The chief judge may on receipt of the form enter an order on behalf of the Executive Committee directing that the case or cases be reassigned or may ask the full Committee to review the requested reassignment at the next meeting. A case will be deemed reassigned following the docketing of the order of the Executive Committee directing its reassignment.

Amended by General Order 03/03/2011, 02/27/2014, 05/23/2014, 12/23/2014, 11/25/2025

IOP 14. MAGISTRATE JUDGES: REFERRALS

A judge may refer a civil case to the designated magistrate judge pursuant to [LR 72.1](#) and [LCR 50.3\(d\)](#). In such instances, the judge shall specify the duties being referred to the magistrate judge. Referrals should not be made for reports and recommendations on dispositive motions or trial/post-trial related matters, with the exception of motions for preliminary injunction and motions to enforce settlement if the assigned magistrate judge held the settlement conference.

Amended 05/31/2011, 06/27/2018, 09/28/2023

IOP 15. BANKRUPTCY MATTERS

(a) Referral to Bankruptcy Judges. Pursuant to [28 U.S.C. §157\(a\)](#), any and all cases under Title 11 U.S.C. and any and all proceedings arising under Title 11 U.S.C. or arising in or related to any case under Title 11 U.S.C. are referred to the bankruptcy judges of this District.

(b) Assignment by Lot. Except as provided by sections C, D, E and F of this rule, each of the following shall be assigned by lot to a district judge:

(1) any motion (including a recommendation by a bankruptcy judge) for the withdrawal of the reference of a bankruptcy (“B”) case or proceeding pursuant to [28 U.S.C. §157\(d\)](#);

(2) any motion (including a recommendation by a bankruptcy judge) for the withdrawal of the reference of an adversary (“A”) proceeding pursuant to [28 U.S.C. §157\(d\)](#);

(3) any report and recommendation of a bankruptcy judge in a non-core proceeding filed pursuant to [28 U.S.C. §157\(c\)\(1\)](#); and

Where assigned by lot, petitions for withdrawal of reference, appeals, motions for leave to appeal, and applications for writs shall be assigned using the Civil II assignment category and reports and recommendations using the Civil III assignment category.

(c) Direct Assignment in Bankruptcy (“B”) Cases. If in a bankruptcy (“B”) case or set of related bankruptcy (“B”) cases a report and recommendation referred to in (b)(3) is filed pursuant to the prior direction of a district judge, the report shall be assigned directly to the calendar of that judge.

If in a contested matter within a bankruptcy (“B”) case a motion for withdrawal of reference, or a report and recommendation, or an appeal, or a motion for leave to file an interlocutory appeal, or an application for a writ referred to in (b)(1) or (b)(2), respectively, is filed and a motion, report, appeal, motion for leave to file an interlocutory appeal, or application for a writ referred to in (b)(1) or (b)(2), was previously filed in the same contested matter and assigned by lot to a district judge, then the subsequent motion, report, appeal, motion for leave to file an interlocutory appeal, or application for a writ shall be assigned directly to the calendar of that judge.

(d) Direct Assignment in Adversary (“A”) Proceeding. If in an adversary (“A”) proceeding a motion for withdrawal of reference, or a report and recommendation, or an appeal or a motion for leave to file an interlocutory appeal, or application for a writ referred to in (b)(1) or (b)(2), respectively, is filed and a motion, report, appeal, motion for leave to file an interlocutory appeal, or application for a writ referred to in (b)(1) or (b)(2) was previously filed in the same adversary (“A”) proceeding and assigned by lot to a district judge, then the subsequent motion, report, appeal or motion for leave to file an interlocutory appeal, or application for a writ to be assigned shall be assigned directly to the calendar of that judge.

(e) Direct Assignment Following Remand. If in any bankruptcy (“B”) case or in any adversary (“A”) proceeding a district judge enters an order, opinion, or memorandum remanding a matter before that judge to the bankruptcy court for further proceedings, then any subsequent motion, report, motion for leave to file an interlocutory appeal, or application for a writ with respect to the matter remanded shall be assigned directly to the calendar of that judge.

(f) Relatedness. Where matters in the underlying bankruptcy case, or adversary proceedings associated with the underlying proceedings, or non-core proceedings associated with the underlying proceedings are pending on the calendars of two or more district judges, motions for relatedness may be filed to have the matters assigned to the calendar of one judge. The standards and procedures established by [LR 40.4](#) shall apply to such motions. For the purpose of determining the judge before whom such motion for relatedness should be filed, the term “lowest-numbered pending case” as used in [LR 40.4](#) shall refer to the petition initiating the bankruptcy case, the adversary proceeding, or the non-core proceeding with the earliest date and time of the filing with the bankruptcy clerk. The motion for relatedness shall include a listing of the dates and times of filing of each of the matters which movant is asking to be found related. Where a case is reassigned as related, it shall be treated on the same manner as a reassignment for relatedness pursuant to [LR 40.4](#) for the purposes of the equalization provisions of IOP 11(b).

(g) Designation Sheet. The person filing the petition for withdrawal of reference, report and recommendation, appeal, motion for leave to appeal, or application for a writ shall complete the designation sheet required by [LR 3.1](#) and shall include on the sheet a list of any associated bankruptcy cases, adversary proceedings, non-core proceedings, appeals or motions for leave to appeal, or application for a writ from such proceedings previously assigned to one or more district judges.

IOP 16. INITIAL CALENDAR FOR NEW DISTRICT JUDGE

(a) Applicability of Procedures. These procedures expand upon the provisions of [LR 40.1\(g\)](#). They apply only to the formation of the initial calendar of a new judge designated to sit in the Eastern Division. They are intended to assure that the initial calendar is a reasonable cross-section of the calendars of all the judges in the Division. The exception to this goal is that no criminal cases shall be reassigned as part of the initial calendar.

(b) Implementation. When a new judge takes the oath, the Clerk of Court shall implement this IOP with the oversight of the Executive Committee. Unless otherwise ordered, the following procedures shall be followed:

(1) The next business day after the new judge takes the oath of office, add the new judge to the Civil Case Assignment Wheel to receive a full share of cases.

(2) The Clerk of Court shall create the Primary and Secondary List as outlined below upon the judge taking the oath of office that provides an initial calendar that equals fifty percent of a district judge.

(3) No later than ten days after the new judge takes the oath, the Clerk of Court will distribute the lists for review by the district judges participating in the reassignment.

(4) Each judge will have up to ten days to review the list and identify cases that are to be withheld pursuant to the provisions of this IOP.

(5) After the judges review the primary and secondary lists, the newly appointed judge will screen the cases that are to be reassigned for conflicts. If a judge determines they have a conflict with a case that remains on the primary list, the Clerk of Court shall replace the case from the secondary list. This review must be completed within 27 days of taking the oath of office.

(6) Within 30 days of the newly appointed judge taking the oath of office, the Clerk of Court will reassign the cases to form the initial calendar.

(c) Number of Participating Judges. In general, each regular active judge on full assignment participates in the reassignment of cases to form an initial calendar for any newly appointed judge to the extent of one share. The chief judge and each participating senior judge participate to the extent of one share weighted by the proportion of new civil filings that judge currently receives.

(d) Related Case Review. The clerk will instruct the courtroom deputies assigned to the participating judge to submit a list of related cases shortly before the reassignment process is started. Failure to identify a case as a higher-numbered related case results in its remaining on the list used to select primary and secondary lists. Where it is subsequently discovered that a case on the primary or secondary list was a higher-numbered related case, it is removed from the list. The related set is not reassigned in such circumstances. If the case appeared on the primary list, the appropriate substitution from the secondary list is made.

(e) Number of Cases to be Reassigned from Each Judge. The number of civil cases to be assigned to a newly appointed judge's calendar will be determined pursuant to calculation by using a fraction in which:

(1) The numerator is the average number of pending civil cases for the 12 months preceding the creation of the new calendar; and

(2) The denominator is the number of active district judgeships plus the number of active district judgeship equivalents. Specifically, each active district judge and each vacant judgeship counts as 1.0 equivalency. Each senior district judge counts as the percentage of civil case draw being assigned to that judge; thus, for example, a senior district judge on a full draw count as 1.0, while a senior district judge on a 40% draw will count as 0.4 equivalency.

(3) The result of this calculation—average number of pending civil cases divided by number of active district judgeship equivalents—will then be divided by two to yield the number of cases to be assigned to each new appointed judge's calendar.

(f) Primary & Secondary Lists. Two sets of cases are selected from each judge's list of pending cases. The first set forms the primary lists and the second the secondary list. The selection process is a form of stratified random selection process that selects the cases randomly but evenly spaced. In this way the initial calendar has a mix of cases by age that is the average for the Court.

The following is a description of the steps involved:

(1) A calendar list is prepared for each participating judge. The list contains the case numbers and short title of all the civil cases other than MDL cases, cases that have previously been reassigned two or more times for any reason other than recusal, and cases that are motions to reduce sentence filed pursuant to [28 U.S.C. §2255](#). Higher-numbered related cases are included on the list, but only for the purpose of identifying any cases associated with the lower-numbered lead case. Each related set is counted as one case for the purpose of the selection process.

(2) where the newly appointed judge is coming from private practice or a position with an organization or agency that might have filed cases in this Court, a search will be made of CM/ECF records to identify all cases that the law firm, organization, or agency has pending before the Court.

(3) The case numbers are sorted so that they are listed in case number order with the oldest case, i.e., earliest case number, first.

(4) The total, T , of the cases on the calendar list net of higher-numbered related cases is calculated. An interval number, I , is computed by dividing T by the number of cases to be reassigned from the calendar (" R "). As T/R will rarely result in an integer and the interval must be an integer, only the integer portion of T/R is taken.

(5) A primary start number, $S1$, is randomly selected from the set of numbers $1, 2, 3, \dots, (I-2), (I-1), I$. The random number generator used to select $S1$ is such that each number in the set has an equal chance of being selected.

(6) The primary lists consists of the $S1$ th case, the $(S1 + I)$ th case, the $(S1 + 2I)$ th case, the $(S1 + 3I)$ th case, ..., and the $[S1 + (R-1)I]$ th case, provided that if a flagged case is

selected, e.g., one that was previously reassigned two or more times to form an initial calendar, the next lower-numbered case is then substituted.

(7) A secondary start number, S2, is selected in the same manner as the primary start number, except that it must be a number other than the primary start number.

(8) The secondary list is selected in a manner similar to that used to select the primary list.

(9) If as part of the process of forming either the primary or the secondary list the case selected is a flagged case, e.g., a case previously reassigned two or more times as part of the formation of an initial calendar, the next lower-numbered unflagged case is selected. Should there be no lower-numbered unflagged case, the next higher-numbered unflagged case is selected.

(g) Review of Primary & Secondary Lists. The primary and secondary lists are sent to each of the participating judges. The cases on the primary list are those cases to be reassigned to form the initial calendar of the new judge. However, a case may be withheld from the primary list under certain circumstances. Where a case is to be withheld, the case on the secondary list with the case number closest to that of the case to be withheld will be substituted. As the reasons for withholding apply to cases on both lists, both should be reviewed by the judge. Cases may be withheld from reassignment only if they meet one or more of the following conditions:

(1) the case is closed and the J.S. 6 statistical closing form has been received by the central Clerk's Office;

(2) the case has been reassigned to the calendar of another judge;

(3) the trial has started or has been completed;

(4) the case was remanded with instructions for action by the judge on whose calendar the case is pending at the time of the reassignment to form a new calendar;

(5) the case is found not to meet the criteria for inclusion in the pool of cases used to prepare the primary and secondary lists (e.g., the case is part of an MDL, the proceeding is not statistically reportable as a civil case); and

(6) the case is to be reassigned to a magistrate judge on consent of the parties, the case will be withheld from reassignment.

(h) Review of Substitutions. Whenever a case from the secondary list is to be substituted for a case on the primary list because the latter is to be withheld, the judge will indicate the reason the case is to be withheld. The Executive Committee shall decide whether or not a case is to be withheld in instances where it is unclear whether the reason given for withholding the case satisfies one or more of the conditions included in sections (f) and (g). The Executive Committee has reviewing authority over any substitutions proposed by a judge.

(i) Closed Cases. Where a case selected for reassignment is closed before it is reassigned to the initial calendar, the case with the closest case number on the secondary list is substituted for the closed case. Closings taking place after the date the cases have actually been reassigned are credited to the calendar of the new judge regardless of which judge closed the case and no substitutions are to be made for the case.

For the purposes of this section a case is considered closed when a J.S. 6 statistical reporting form indicating that the date of closing was prior to the date the new judge took office is received by the central Clerk's Office within a week of the date of closing.

(j) Recusals by New Judge. Once the cases are reassigned, if the new judge determines a recusal is necessary in a case that was reassigned as part of these procedures, the matter will be reassigned to the calendar of the judge from which it was reassigned. That judge may transfer to the Executive Committee for reassignment to the recusing judge a case requiring a like amount of judicial effort for disposition.

(k) Criminal Cases. The incoming judge will be added to the Court's criminal case assignment system ninety (90) days from the entry of the initial calendar reassignment order so that the judge shall thereafter receive a full share of such cases. Should the incoming judge be a current Assistant United States Attorney, the judge will be added to the criminal case assignment system after 12 months.

Amended 05/23/2014, 11/06/2019, 03/20/2025

IOP 17. INITIAL CALENDAR FOR NEW MAGISTRATE JUDGE

(a) General; Applicability of IOP 16. An initial calendar shall be prepared under the direction of the Executive Committee for any newly-appointed magistrate judge. The calendar shall consist of referrals in civil cases made pursuant to [LR 72.1](#) and IOP 14 and civil cases reassigned on consent pursuant to [LR 73.1](#). No referrals in criminal cases or criminal cases assigned to a magistrate judge shall be included in an initial calendar.

Except as provided in section (b), the provisions of IOP 16 shall be followed in preparing the initial calendar for a magistrate judge. Referrals and cases reassigned on consent shall be treated as two separate categories and separate target numbers and primary and secondary lists shall be prepared for each category. For the purpose of preparing the initial calendar for a magistrate judge, references to a regular active judge in IOP 16 shall be taken to mean sitting magistrate judge. Referrals in criminal cases shall be included in the count of cases used to determine the target value for the number of civil referrals to be reassigned to form the initial calendar. Similarly, criminal cases assigned to magistrate judges will be included in the count used to determine the target value for the number of consent cases to be reassigned to form the initial calendar.

(b) Equalization and Initial Calendar Formation. The Executive Committee may use the formation of an initial calendar to equalize disparities in the calendars of magistrate judges. In the order directing the formation of an initial calendar for a magistrate judge the Executive

Committee may direct that any of the following methods of determining the extent to which sitting magistrate judges may participate in the reassignment be used in lieu of the equal share participation rate established by IOP 16:

- (1) the participation may be limited to the magistrate judges most in need of equalization; or
- (2) the participation may be based on the proportions of pending referrals or reassignments on consent rather than equal shares; or
- (3) the participation may be based on the proportion of referrals or reassignments on consent received over a specified time period rather than pending numbers; or
- (4) the participation may be based on such other method as the Executive Committee directs in order to achieve equalization of calendars among the magistrate judges.

Regardless of the method used, the referrals and cases to be reassigned will be selected from the calendars of the participating magistrate judges by lot in accordance with the procedures set out in IOP 16.

Committee Comment. The calendar of a magistrate judge differs from that of a district judge in an important way. The calendar of a magistrate judge includes both referrals and cases reassigned on consent. The jurisdictional status of the latter is like that of the cases on the calendars of the district judges. The referrals, however, are simultaneously on the calendars of both a district and a magistrate judge. Accordingly, for the purpose of forming an initial calendar for a magistrate judge, the Court requires that referrals and reassignments on consent be kept separate. The initial calendar for the new magistrate judge will, therefore, involve two reassignment processes: one to select the referrals and the other to select the cases reassigned on consent.

There is another area in which the assignment of cases and referral of matters to magistrate judges differs from the assignment of new cases to regular active district judges. The system of assigning cases to district judges is designed to assure that each regular active judge receives the same number of new cases over time as each of the other regular active judges. Each magistrate judge in the Eastern Division is designated an equal number of times. However, a designation is a potential referral or reassignment on consent, not an actual referral or reassignment. Whether or not a case is referred is a result of many factors, case complexity and the calendar management style of the referring district judge, being just two of the more obvious. As a result, there often arises a significant variance among the magistrate judges in the numbers of referrals they receive. As civil consent cases frequently arise out of referrals, a similar variance occurs in the reassignment of cases on consent.

The formation of an initial calendar for a newly appointed magistrate judge provides an opportunity for the Court to address any calendar imbalances that have arisen among the magistrate judges because of variances in referral and reassignment rates. The default method of preparing an initial calendar is to use the procedures of IOP 16, *i.e.*, the same system as that used

to create the initial calendar of a new district judge. Under that system each magistrate judge would participate equally in the formation of the initial calendar. However, section (b) provides that the Executive Committee may depart from the equal participation approach of IOP 16 and use the process of forming the initial calendar to equalize existing calendars. This may be done in one of four ways: (i) the participation may be limited to the magistrate judges most in need of equalization; or (ii) the participation may be based on the proportions of pending referrals or reassignments on consent rather than equal shares; or (iii) the participation may be based on the proportion of referrals or reassignments on consent received over a specified time period rather than pending numbers. The fourth alternative is simply a catch-all: “or by such other method as the Executive Committee directs in order to achieve equalization of calendars among the magistrate judges.”

Amended 03/22/2019

**IOP 18. PERIODIC CALENDAR ADJUSTMENT PROGRAM (DISTRICT JUDGES)
(AMENDED 07/07/2000)**

(a) Participation. In order to participate in the program, a judge of the District must meet the following criteria:

- (1) The judge is a regular active judge.
- (2) The official duty station of the judge is Chicago.
- (3) The judge entered on duty a minimum of 60 months preceding the months during which the judge is to be removed from the assignment process as part of the program. *(Amended 09/10/2001)*
- (4) Where 2 or more judges are eligible to be removed from the assignment process under these procedures, they may agree to exchange scheduled adjustment periods for which they have been scheduled provided each of the judges is eligible to serve in the exchanged period.

(b) Order of Judges Within a Cycle. Each year the Executive Committee will enter an order directing the clerk to remove judges from the assignment process for periods of 3 months. Each such order will establish a cycle of four periods. The order of participation in each cycle will be based on the following criteria:

- (1) Judges who have not previously participated in the calendar adjustment program shall be scheduled for the first period after they have met the eligibility criteria established in section (a) above.
- (2) If two or more judges who have not previously participated are eligible for the same period, the order of their participation shall be based on seniority.

(3) The order of judges' names for any remaining periods in a cycle will be based on the length of time since their last participation in the calendar adjustment program; *i.e.*, the judge with the longest such interval will be assigned to the first available period.

(c) Sequence of Name Confidential. In order to permit the judges to plan to take best advantage of the opportunities offered by the program, a tentative list for 3 years will be issued to each judge at the time a copy of the order implementing the current periods is adopted. However, because knowledge that a judge may be removed from the assignment process might be used to permit judge shopping, the sequence should not be publicized.

(d) Exchanges of Periods. If 2 or more judges tentatively scheduled for the next year agree to change periods with other eligible judges as provided by subsection (a)(4), those involved should notify the chief judge so that the Executive Committee order can incorporate the agreement.

(e) Emergency Judge Schedule. Where a judge's emergency judge period would fall in a period during which the judge is scheduled to be removed from the assignment process under these procedures, the emergency judge assignment will be delayed to the next emergency judge period that falls outside of the non-assignment period.

Committee Comment. The essence of the periodic calendar readjustment program is that a judge is taken off the assignment wheel for a period of three months after having an aggregate of at least four years on the assignment wheel. The program is designed to give each judge a three-month period approximately every four years where the judge can schedule matters without the pressure of monitoring new cases and the work associated with new cases such as petitions for preliminary injunctions.

The program only applies to the Eastern Division. In general, it has the effect of having one fewer judge on assignment at any point in time. Given that there are 21 judgeships authorized for that Division plus the active senior judges, the share of new cases of one judge divided among the remaining judges results in several additional cases per month for each of the others. The judges have agreed that the scheduling convenience permitted by the program outweighs the small increase in new assignments each receives when not off the wheel.

The program was initially adopted at the judges' meeting of 04/13/1989. It was subsequently amended at the judges' meetings of 04/17/1995 and 06/29/2000.

IOP 19. PERIODIC CALENDAR ADJUSTMENT PROGRAM (MAGISTRATE JUDGES)

(a) Introduction. The periodic calendar adjustment program for magistrate judges provides for a magistrate judge not to receive new referrals in civil or criminal cases, new civil cases reassigned on consent of the parties, or new criminal misdemeanor cases for a period of three months after five years of service.

(b) Participation. In order to participate in the program, a magistrate judge of the District must meet the following criteria:

- (1) The magistrate judge is a full-time magistrate judge.
- (2) The magistrate judge has not previously participated in the program and entered on duty sixty months preceding the months during which the magistrate judge is to be removed from the assignment process as part of the program.
- (3) The magistrate judge has previously participated in the program and an aggregate of fifty-one months (forty-eight months plus the three months of the previous adjustment period) has elapsed from the date the magistrate judge was last eligible to participate in the program.
- (4) Where two or more magistrate judges are eligible to be removed from the assignment process under these procedures, the magistrate judge who has previously been removed the fewest times under this program will be scheduled first. Where two or more magistrate judges are eligible to be removed from the assignment process under these procedures and each was previously removed the same number of times, the most senior magistrate judge will be scheduled first.
- (5) Where two or more magistrate judges are eligible to be removed from the assignment process under these procedures, they may agree to exchange scheduled adjustment periods for which they have been scheduled in accordance with (4) above provided each of the magistrate judges is eligible to serve in the exchanged period.
- (6) A magistrate judge may request to be removed from the assignment process during a period later than that for which the magistrate judge would be scheduled under these procedures provided that no magistrate judge is eligible for that later period.

(c) Order of Magistrate Judges Within Cycle. From time to time, the Executive Committee will enter an order directing the clerk to remove magistrate judges from the assignment process for periods of three months. The first magistrate judge to be removed shall be the most senior magistrate judge who meets the criteria set out in (b) above. The second magistrate judge to be removed shall be the next most senior magistrate judge meeting the criteria, etc.

(d) Sequence of Magistrate Judge Name Confidential. In order to permit the magistrate judges to plan to take best advantage of the opportunities offered by the program, a tentative list for three years will be issued to each magistrate judge at the time a copy of the order implementing the current periods is adopted. However, because knowledge that a magistrate judge may be removed from the assignment process might be used to permit magistrate judge shopping, the sequence should not be publicized.

(e) Order of Executive Committee. The Executive Committee will enter an order annually covering the next four periods. If two or more magistrate judges tentatively scheduled for the next year agree to change periods with other eligible magistrate judges as provided by (b)(6)

above, those involved should notify the Chief Judge so that the order can incorporate the agreement.

(f) Conflicts Between Sabbatical and Magistrate Judge Assignment Cycles. A magistrate judge shall not serve as emergency magistrate judge, duty magistrate judge or federal enclave magistrate judge during a period when he or she is participating in the calendar adjustment program.

(g) Referrals and Reassignments on Consent Where the Designated Magistrate Judge is on Sabbatical. Except as provided for in section (h) below, during periods when a magistrate judge is participating in the calendar adjustment program, referrals, and reassignments in cases where the magistrate judges has been designated pursuant to [LR 72.1](#) shall be randomly referred or reassigned to another magistrate judge.

The magistrate judge who receives a referral or case as provided for by this section shall become the designated magistrate judge in that case.

(h) Subsequent Referrals and Reassignments on Consent in Cases with Pending Referrals. Where a referral is pending in a case before a designated magistrate judge and either the case is to be reassigned on consent or a subsequent referral is to be made in that case during the period when the magistrate judge is participating in the calendar adjustment program, the reassignment or referral shall be made to that magistrate judge. Similarly, where a referral is pending before a designated magistrate judge in one or more cases in a related set of cases and a referral is to be made in another case that is part of the related set during the period when the magistrate judge is participating in the calendar adjustment program, the referral shall be made to that magistrate judge.

(i) Continuation of Designation at Filing. A magistrate judge who is participating in the periodic calendar adjustment program shall not be removed from the designation cycle provided for by [LR 72.1](#).

Adopted 10/13/2004; Amended 03/22/2019

IOP 20. CONSENTS TO PROCEED BEFORE A MAGISTRATE JUDGE

(a) Notice of Availability. Whenever a civil action is filed in this District, the clerk must notify the parties of the availability of a magistrate judge to exercise jurisdiction. See [LR 73.1\(b\)](#).

(b) Party Added After Consent Occurs. Whenever a party is added to a case after the case has been transferred to a magistrate judge on consent, the clerk will inform the additional party of the availability of a magistrate judge to exercise jurisdiction. If the additional party does not consent to proceed before a magistrate judge within 30 days of appearance, the magistrate judge will transfer the case to the calendar of the district judge to whom the case was previously assigned. See [LR 73.1\(f\)](#).

(c) Joint Statements of Consent. Parties shall consent to proceed before a magistrate judge by filing a joint statement of consent. See [LR 73.1\(c\)](#).

Amended 10/20/2021

IOP 21. AFTER-HOURS ARREST WARRANT

If an after-hours arrest warrant is needed by a United States Probation Officer, the Officer shall prepare Probation Form 12C and present it to the duty magistrate judge for review. If the petition is granted, the United States Probation Officer shall provide a copy of the signed Probation Form 12C to the United States Marshals Service as proof of the order issuing the warrant. The United States Probation Officer shall forward the original Form 12C to the Clerk of Court the next business day to file the document. The United States Probation Officer shall also notify the district judge who was assigned to the underlying criminal case for which a warrant was issued the next business day.

Adopted 10/31/2018

IOP 22. PRIVACY IN SOCIAL SECURITY OPINIONS

In cases brought for judicial review under the Social Security Act, the Memorandum Opinion and Order shall not identify the non-government party by using his or her full name. The non-government party shall be named and referred to by using his or her full first name and the first initial of the last name. All parties shall follow the requirements of Local Rule 8.1.

Adopted 12/27/2018

IOP 23. EQUALIZATION CREDIT FOR LONG TRIALS

To equalize workloads associated with unusually long jury or bench trials, a judge may, pursuant to the provisions of this Internal Operating Procedure (IOP), request an equalization credit. These provisions are applicable to all civil and criminal trials.

(a) Qualifying Trials. In any trial or group of trials (with or without a jury) arising in a proceeding held before the same judicial officer, an equalization credit may be sought where the total number of trial days is at least fifteen and the total number of trial hours is at least 67.5. For the purposes of this IOP, the terms “trial,” “trial day,” and “trial hours” have the same meanings as when used for purposes of the Administrative Office’s monthly JS-10 reporting requirements.

(b) Additional Equalization Credit(s). When a trial extends beyond the period established in section (A), additional equalization credit(s) may be requested. A judge may seek an additional equalization credit for each additional two trial day period with a combined total of at least nine trial hours.

(c) Applying Credit(s) for Equalization. A judge may choose how to apply the earned equalization credit(s). The equalization credit(s) earned can be applied to either or both the civil and criminal wheels. Credit can only be applied to a case assignment category (1, 2, 3, etc.) that is equal to or lower than the proceeding in which the equalization is earned.

(d) Request for Equalization. A judge may request the equalization credit(s) for a qualifying trial on an approved form within 90 days of the completion of the trial, absent exceptional circumstances as approved by the Executive Committee. The judge must indicate the following:

- (1) The case number, caption and the assignment wheel and category used for the case assignment of the qualifying trial.
- (2) The total number of hours and days of the trial.
- (3) The total number of equalization credits earned and requested pursuant to the provisions of sections A and B.
- (4) Indicate what wheel (civil or criminal) and category (1, 2, 3 etc.) the credit(s) should be applied.

Adopted June 29, 2023

IOP 24. RESERVED

IOP 25. EMERGENCY DISTRICT JUDGE

(a) Designation of the Emergency Judge. At all times there shall be at least one judge of the Court assigned to act as emergency judge and perform the duties specified in [LR 77.2](#). The emergency judge shall be a regular active judge of the Court other than the chief judge or a judge whose duty station is outside the Eastern Division, provided that the chief judge may designate a senior judge to serve as emergency judge if such senior judge consents. No judge shall serve as emergency judge within the six months immediately after taking the oath of office. The chief judge may also serve as emergency judge.

There shall be two cycles for designating emergency judges: one for service during the summer sessions and the other for the balance of the year. Judges shall serve as emergency judge in order of seniority. No judge shall serve a second monthly term until all eligible judges have served a monthly term, nor shall any judge serve a second two-week term until all eligible judges have served a two-week term. The clerk shall maintain a record of the emergency judge periods served by each judge.

(b) Terms of Service. The term of service of an emergency judge shall start at 12:01 A.M. on Monday and end at midnight on the Sunday immediately preceding the Monday starting the next term of service. The length of service shall be as follows:

- (1) during the summer sessions, *i.e.*, the fourteen-week period beginning the first Monday in June, the term shall be two weeks; and
- (2) during the balance of the year, the term shall be for one month starting with the first Monday of each month, provided that if the first Monday in September falls in

the summer session, the September terms of service shall start with the second Monday in September.

(c) Preliminary Assignment Schedules. By 1 April of each year the clerk shall prepare and circulate among the judges preliminary schedules of emergency judges: one for the summer sessions of that year and one covering the service periods from the end of those summer sessions to the start of the next summer sessions. In preparing a preliminary schedule the clerk shall list for the first service period the most senior of the eligible judges who have not yet served in the current service cycle, for the next service period, the next most senior judge, etc. The clerk shall, where appropriate, modify this initial listing, to take into account the following:

(1) *New judge exception:* The clerk shall not schedule any newly appointed judge as emergency judge for at least 6 months after that judge takes the oath of office. After 6 months have expired, the Clerk shall schedule a newly appointed judge in the first available time period in the next Emergency Judge Schedule. Where there are two or more such judges, the clerk shall schedule them in order of seniority. This provision applies to both regular and summer Emergency Judge Schedules.

(2) *Recent service exception:* Even though the judge is otherwise eligible, the clerk shall not include a judge in the preliminary schedule who served as emergency judge in the previous period for which the lists are being prepared, *i.e.*, served as emergency judge in the last summer sessions where a schedule for the summer sessions is being prepared, or served as an emergency judge in the last regular set of service periods where a schedule for those periods is being prepared. The clerk shall re-schedule any judge covered by this exception to the first service in the preliminary lists for the next year.

(3) *IOP 18(e) exception:* If the service period for which a judge is initially scheduled falls within the period during which pursuant to IOP 18 the judge is not receiving new assignments, the clerk shall list the judge in the first service period that starts after the IOP 18 period ends.

Within 14 days of the date on which the preliminary lists were circulated, any judges agreeing to switch with all or part of a service period for which the judges were scheduled shall so inform the clerk. The clerk shall modify the preliminary schedules accordingly. Within 21 days of the date on which the preliminary lists were circulated, the clerk will prepare and forward to the chief judge a draft of a general order setting out the modified preliminary schedule for emergency judges for the next summer sessions and for the next period between the end of that summer sessions and the start of the next summer sessions.

(d) Formal Schedule Not Published. The order signed by the chief judge constitutes the formal schedule of emergency judge assignments for the period covered by the order. To minimize the potential for judge shopping, the formal schedule is not made public. At the beginning of each week the name of the emergency judge is made available for that week.

(e) Adjustments to Schedule. Should two or more judges agree to change all or part of their service periods after the order fixing the schedule has been entered, they must notify both the chief judge and the clerk. Where the change involves more than a few days, an amended order will be entered incorporating the change.

(f) Absence of Emergency Judge. In the event that the emergency judge will be out of town or otherwise unavailable, the emergency judge will arrange for another judge to act as emergency judge. Where such an arrangement is made, the emergency judge will promptly inform the chief judge and the clerk of the substitution. The chief judge may make such substitution if for any reason it has not been made and the scheduled emergency judge is unavailable.

Where the designated emergency judge is unable to serve as emergency judge due to illness and an order is entered removing the judge from the assignment system due to the same illness, for the purpose of subsequent designations as emergency judge, the designated judge will be considered to have served as emergency judge during the designated period regardless of the amount of time, if any, the judge actually served. The judge or judges assuming the judge's duties will not normally receive any additional credit for the service unless one judge served for the entire period and the chief judge instructs the clerk to credit both the originally designated judge and the serving judge with the period.

Amended 03/13/2009, 12/10/2019

IOP 26. DUTY MAGISTRATE JUDGE

(a) Designation of the Duty Magistrate Judge. At all times there shall be at least one magistrate judge of the Court for each division assigned to act as duty magistrate judge. No magistrate judge shall serve as duty magistrate judge within the six months immediately after taking the oath of office.

(b) Terms of Service. The term of service of a duty magistrate judge shall start at 8:00 A.M. on Monday and end at 8:00 A.M. on the following Monday.

(c) Assignment Schedules. One schedule will be maintained for each division. The chief magistrate judge in consultation with the other magistrate judges shall be responsible for preparing and maintaining the schedules of the assignments of duty magistrate judge and federal enclave magistrate judge. These shall be prepared at least eight weeks prior to the expiration of the schedule in place. Once the formal schedules have been established, they must be shared with the chief judge, and the clerk.

(d) Schedule Not Published. To minimize the potential for judge shopping, the formal schedule is not made public. At the beginning of each week the name of the duty magistrate judge(s) is made available for that week.

(e) Adjustments to Schedule. Should two or more magistrate judges agree to change all or part of their service periods after the schedule has been established, they must notify the chief judge, the chief magistrate judge, and the clerk.

Amended 11/22/2022 and 04/24/2025

IOP 27. ABSENCE OF ASSIGNED JUDGE

Any judge who plans to be absent from court on a regular business day, during the regular sessions of the Court, should arrange for a judge other than the emergency judge to hear non-emergency matters arising from cases on the judge's calendar. Where such arrangements are made, the judge should instruct the courtroom deputy to post a notice on the door to the courtroom indicating the name of the judge who will hear non-emergency matters and the room number of that judge's courtroom and post a notice on the Court's website.

Amended 11/24/2015

IOP 28. GUIDANCE FOR THE CHIEF JUDGE DURING A JUDGE'S ABSENCE

The Chief Judge has authority to reassign cases or enlist other judges to help manage the caseload of a judge who has not held court in person for a period of two months or more. If the Chief Judge determines that reassignment of the cases may thus be necessary, the Chief Judge shall first seek the approval of the Executive Committee prior to entering a reassignment order. Should the Executive Committee concur, a reassignment order will be entered. Once the original presiding judge returns to the bench, the cases can return to that judge, with the approval of the Executive Committee.

Adopted 02/06/2018

IOP 29. AT-LARGE MEMBERS OF THE SEVENTH CIRCUIT JUDICIAL COUNCIL

This District's Chief Judge will with the consent of the full court select the District's at-large members of the Judicial Council by seniority from those judges who have completed service on the District's Executive Committee. The District's at-large members will serve staggered three-year terms on the Judicial Council. Not later than May 15 of each year, the District's Chief Judge will inform the Circuit's Chief Judge of the district judge who will replace the judge completing her or his service on the Judicial Council on June 1 of that year.

Adopted 06/28/2021

IOP 30. RESTRICTED DOCUMENTS

(a) Separate Filing Area for Restricted Non-Electronic Documents. Where the court has permitted documents to be filed non-electronically, the clerk shall maintain restricted documents, sealed documents, and documents awaiting expunction as defined by [LR 26.2\(a\)](#) separately from the files of documents to which access has not been restricted. Any area used to store documents

to which access has been restricted shall be secure from entry by any persons other than the clerk or those designated in writing by the clerk as authorized to have access.

The clerk shall designate in writing deputies authorized to accept restricted documents either from chambers or for filing pursuant to protective orders.

Materials accepted as restricted pursuant to a court order authorizing non-electronic filing shall be maintained in a secure area until collected by one of the designated deputies. Where the materials so accepted are being filed pursuant to a protective order, the deputy accepting them will stamp the cover of the document with a FILED stamp indicating the date of filing.

(b) Handling Sealed Non-Electronic Documents. Where the court has authorized the non-electronic filing of a document under seal, it is to be delivered for filing pursuant to [LR 5.8](#).

Where under the terms of a protective order a party is permitted to inspect a sealed document that has been filed non-electronically and that party appears in the clerk's office and requests the document, one of the deputies authorized to handle restricted materials pursuant to section (a) shall obtain the document and provide an area where the person may inspect the document other than in the public area of the clerk's office. The deputy will complete a form showing the date, description of the document, the name of the person requesting access to the document, a statement indicating that the deputy has checked the protective order and it does indeed authorize the person to inspect the document, and a statement that the deputy requested of and was shown identification by the person requesting access to the document. Any person wishing to inspect the document must sign the form completed by the deputy to indicate that they are authorized to inspect the document.

(c) Handling Sealed Electronic Documents. Where a party who is authorized to inspect a sealed document that has been filed electronically appears at the clerk's office and requests the document, one of the deputies authorized access to such documents will complete the form described above and provide access to the document to the requesting person in a non-public area of the clerk's office.

(d) Grand Jury Records; Disposition. The clerk shall maintain documents, either electronic or non-electronic, arising out of or connected with grand jury proceedings separately from other restricted documents. The clerk shall designate in writing deputies authorized to accept grand jury documents for filing and authorized access to the area in which the documents are stored.

Such non-electronic documents shall be maintained for not less than 10 years following the date of filing or entry if not related to a specific grand jury proceeding. Documents in proceedings assigned a grand jury number shall be maintained for at least ten years following the commencement of the proceeding as indicated by the GJ number.

From time to time the clerk may petition the chief judge for leave to destroy documents arising out of or connected with grand jury proceedings. The petition shall contain a list of the GJ numbers for documents arising out of specific proceedings and a reasonable description of any documents other than those arising out of specific proceedings for which permission to destroy is sought. The clerk shall provide the United States attorney with a copy of the petition. If the

United States attorney wishes to defer the destruction of some or all of the documents referred to in the petition, a written response to the petition setting forth the reasons for the requested deferral must be filed with the chief judge within 14 days of the date the copy of the clerk's petition was transmitted to the United States attorney. The chief judge may grant the petition for destruction, or direct that consideration of the destruction of some or all of the items specified in the petition be deferred for an additional year at the end of which the clerk may again petition for authority to destroy the documents.

The petition for leave to destroy the documents, the response of the United States attorney, and any order of the chief judge dealing with the petition and response are, except as otherwise ordered, restricted documents.

(e) Sanctions. Employees of the court are expressly forbidden to perform any of the following acts:

- (1) entering an area designated for the storage of restricted documents without the appropriate written authorization required by sections (a) or (c);
- (2) accessing restricted documents that are either electronic or non-electronic, when not specifically authorized to do so;
- (3) assisting any person who is not authorized access pursuant to sections (a) or (c) to restricted documents that are either electronic or non-electronic, to gain or to attempt to gain access to such restricted documents;
- (4) accepting for filing any restricted document that is either electronic or non-electronic, when not specifically authorized to do so pursuant to section (a);
- (5) permitting any person who is not specifically authorized to have access to a restricted document that is either electronic or non-electronic, to examine such a document, or to provide such a person with access to such a document; and
- (6) leaving a restricted document that is either electronic or non-electronic, unattended in an area other than one specified by this procedure such that persons not authorized access to the document could readily gain access to it; and
- (7) providing access to a restricted document that is either electronic or non-electronic, to any party who has not been approved for such access by the Court.

Employees of the court who knowingly perform any of these acts may be subject to immediate dismissal. Persons who are not employees of the court who seek to coerce or induce any employee of the Court to perform any of these acts shall be punished by contempt of court.

Amended by General Order 06/04/2009, 07/06/2011, 11/06/2019

IOP 31. REGISTRY ACCOUNT

[Fed.R.Civ.P. 67](#) requires the clerk to maintain an interest-bearing registry account. The conditions and terms of the agreement between the clerk and the bank maintaining the registry account shall be approved by and be subject to the supervision of the Executive Committee. The relationship of the Court to these funds is custodial in nature, and the United States acts as a trustee for the rightful owners of such funds. The clerk, as the custodial agent for the United States, has no obligation to preserve and keep safe such funds for the depositor and the Court.

Any claimant entitled to any such money may, upon petition to the Court and upon notice to the United States attorney and full proof of the right thereto, obtain an order directing payment to him pursuant to [28 U.S.C. §2042](#).

Payment of a registry fee is due and payable on funds held in the Courts' registry and invested in interest-bearing accounts. The fee is equal to the amount prescribed by the Judicial Conference based on the income earned on the invested funds throughout the life of the investments.

IOP 32. DISTRICT COURT FUND

The clerk shall be the trustee of the District Court Fund. Monies deposited in the Fund shall be used only for the benefit of the bench and bar in the administration of justice. All withdrawals from the fund shall require the approval of the chief judge or a judge designated by the chief judge.